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# Translation/Name Affidavit Guidance

**Note: These affidavits may not be required for your case. If they are needed, we will notify you.* ***Please do NOT sign them until your petition letter is finalized*** *and we have provided instructions for signing. Please allow us to confirm the details before proceeding with any signatures.*

## Translation Affidavit

All documents submitted to the USCIS must be in English or accompanied by a certified English translation. This includes degree-related materials, evidence of your publications, notable citations, support letters, and any other supplemental evidence submitted in support of your petition.

You or a colleague fluent in both English and the original language of the document may complete a certified translation by submitting the following:

1. The document in its original language
2. A separate document containing the English translation
3. A translation affidavit

A translation affidavit template is available in Appendix C of your Client Packet. If you or your colleague chooses to prepare the translation, please complete the affidavit as well. However, **please do NOT sign the affidavit until your petition letter is finalized** and we have confirmed all necessary details. We will provide further instructions when the affidavit is needed.

**Please also note that if a peer-reviewed article includes the journal name, article title, author list, and abstract in English, a certified translation is generally not required.**

If you prefer not to translate the document yourself, you may use a professional translation service. Unfortunately, we are unable to recommend specific providers.

**Name Affidavit**

If your name appears differently across documents, we recommend that you submit a name affidavit in your final petition package. This may apply if you publish articles under a different name than the one on your passport, or if you use an abbreviated version of your full name in professional settings. Please be assured that variations in the presentation of your name should not cause any issues with your I-140 petition, as long as we include documentation explaining the differences.

A name affidavit template is available in Appendix C of your client packet. We will provide you with further instructions in case a name affidavit is required for your case after your petition letter is finalized. Please do not sign this affidavit until you have received our instructions.

# FAQ

1. **Q: Can I use Google Translate or a similar program to translate documents?**

   **A:** No, please **do not** translate anything using an automated service such as Google Translate. All translations should be performed by a fluent speaker of both English and the language in question.

2. **Q: Who can perform a translation? Is it really ok if I or my friend/relative/coworker translates documents for my case?**

   **A:** Anyone who can attest to their fluency in both English and the language in which the document in question is written can perform a certified translation. For I-140 or I-129 filing, their relation to you should not impact the acceptability of the translation in any way.

3. **Q: How should certified translations be formatted?**

   **A:** If you or someone you know is performing the certified translation, we recommend including the translation on a separate page from the affidavit. It is generally best that the translation be formatted similarly to the original. Please **do NOT** translate a document by annotating or writing over the text of the original. The translation should appear as a separate document from both the original document and the translation affidavit. If you use a professional translation service, the formatting used by the translator should typically be fine.

4. **Q: Which portions of emails need to be translated?**

   **A:** You should translate the sender, recipients, subject, date, and full contents of any emails being submitted. You should not need to translate an entire email chain unless

other replies within that chain contain pertinent contextual information.

5. **Q: I have many articles published in a language other than English. Do I need to translate the entire first three pages?**

   **A:** No, in our experience, this is not necessary. It should be fine to translate just the most relevant parts (i.e., the title, author list, publication information, and abstract). Similarly, for notable citations of your work, you should only need to translate the title, author list, publication information, any paragraphs that discuss your work, and the portion(s) of the references section that list your paper(s).

   For book chapters, in addition to the chapter's title, authors, and abstract, please also translate the book's cover page, editor/author names, page(s) with the book's publication information, and the table of contents. For any patents on which you are listed as an inventor, please translate the title, patent number, filing/approval dates, the list of inventors, any assignees, and the abstract.

6. **Q: Which portions of emails need to be translated?**

   **A:** You should translate the sender, recipients, subject, date, and full contents of any emails being submitted. You should not need to translate an entire email chain unless other replies within that chain contain pertinent contextual information.

7. **Q: When signing my name affidavit, which variations should I include?**

   **A:** We recommend including all appearances of your name that could be construed as referring to a different person. When deciding what to include on a name affidavit, it is better to err on the side of caution and to include even minor variations.